

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
MARY POWER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT, SGT. DESAMIO, SHIELD #  
696, POLICE OFFICERS JOHN DOE, JIM DOE,  
JAMES DOE AND JANE DOE (ALL FICTITIOUS  
NAMES BECAUSE THEIR IDENTITIES ARE  
CURRENTLY UNKNOWN) ALL FROM THE 73<sup>RD</sup>  
PCT., BEING SUED IN THE CAPACITY AS POLICE  
OFFICERS AND INDIVIDUALLY,

Defendants.  
-----X

**SUMMONS WITH  
VERIFIED COMPLAINT**

Index No.:

Date Purchased:

Plaintiff designates Kings  
County as the place of trial.  
The basis of the venue is that  
Kings County is the place  
where the cause of action  
arose.

To the above named Defendant(s):

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve  
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of  
appearance, on the Plaintiff' Attorney with twenty (20) days after the service of this summons,  
exclusive of the day of service, (30) days after the service is complete, if the summons is not  
personally delivered to you within the State of New York; and in case of your failure to appear or  
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
May 10, 2022

/s/ ROYCE RUSSELL, ESQ.  
Royce Russell, Esq.  
R-SQUARE, ESQ. PLLC  
112 West 34<sup>th</sup> Street 18 Fl.  
New York, NY 10120  
(718) 785-8890

**Defendants address:**

City of New York  
c/o Corporation Counsel,  
City of New York  
100 Church Street  
New York, New York 10007

The New York City Police Department  
1 Police Plaza  
New York, New York 10038

Sgt. Desamio #696  
c/o 73<sup>rd</sup> Precinct  
1470 East New York Avenue  
Brooklyn, NY 11212

Police Officer John Doe  
(A Fictitious Name Because his Identity is Unknown)  
c/o 73<sup>rd</sup> Precinct  
1470 East New York Avenue  
Brooklyn, NY 11212

Police Officer Jim Doe  
(A Fictitious Name Because his Identity is Unknown)  
c/o 73<sup>rd</sup> Precinct  
1470 East New York Avenue  
Brooklyn, NY 11212

Police Officer James Doe  
(A Fictitious Name Because his Identity is Unknown)  
c/o 73<sup>rd</sup> Precinct  
1470 East New York Avenue  
Brooklyn, NY 11212

Police Officer Jane Doe  
(A Fictitious Name Because his Identity is Unknown)  
c/o 73<sup>rd</sup> Precinct  
1470 East New York Avenue  
Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK  
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The Plaintiff, Mary Power, and by her attorney, Royce Russell, R-Square, Esq., PLLC.,  
complaining of the Defendants respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, that at all times hereinafter mentioned, the defendant "City" its agents, servants and employees operated, maintained and controlled the New York City Police Department hereinafter referred to as "NYPD" including all the police officers thereof.
3. That at all times hereinafter mentioned, specifically on the 14<sup>th</sup> day of May 2021, at approximately 2:45 p.m., at the location of 277 Grafton Street, Brooklyn, New York 11212 in the County of Kings within the State of New York, hereafter referred to as the "location," the Plaintiff was lawfully present and had not committed a crime.
4. Upon information and belief, that at all times hereinafter mentioned, specifically on the 14<sup>th</sup> day of May 2021 at approximately 2:45 p.m., Sgt. Desamio #696, hereafter referred to as "Desamio" and Police Officers John Doe, Jim Doe, James Doe and Jane Doe hereafter referred to as "John, Jim, James, Jane" and collectively as "Officers/Defendants" were screened, interviewed, hired by the "City", trained by the "City", were retained by the

“City”, and were investigated, monitored, supervised and/or disciplined by the “City”.

5. Upon information and belief, at all times hereinafter mentioned, and on the 14<sup>th</sup> day of May, 2021, Desamio, John, Jim, James and Jane, were employed as Police Officers by the “City” and/or “NYPD”, and at all relevant times set forth below acted in the capacity of police officer(s) and employee(s) of the City of New York.
6. The Plaintiff, Mary Power (hereinafter referred to as “Mary”), is a United States Citizen.
7. Mary at all relevant times hereunder resides at 277 Grafton Street, Brooklyn, N.Y. 11212.
8. That the Plaintiff filed and served a notice of claim on or about August 4, 2021.
9. The City acknowledged receipt of the notice of claim, however, no 50(h) hearing has been held.
10. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendant, City of New York and the said defendant has neglected or refused to make any adjustment or payment thereof.
11. That this action is commenced within one year and 90 days after the cause of action arose.
12. Upon information and belief, at all times hereinafter mentioned, and specifically on the 14<sup>th</sup> day of May, 2021, at approximately 2:45 p.m., Desamio, John, Jim, James and Jane, collectively hereafter referred as “Officers/Defendants”, were present at or near the vicinity of 277 Grafton Street, Brooklyn, N.Y. 11212 and were acting within the scope of their employment and under the direction of the “City”, and “NYPD” as their agents, servants and/or employee(s).
13. That the “Officers/Defendants”, individually and collectively, at all relevant times hereunder, acted as police officers, and were required to follow the rules and regulations as contained in the New York City Patrol Guidelines.
14. On May 14, 2021, at approximately 2:45 p.m., Mary received a call from her tenant that an unknown person was illegally on her premises located at 277 Grafton Street, Brooklyn, New York 11212 in the County of Kings, State of New York.
15. Said unknown person smashed in the front door of the house and broke into the Plaintiff’s apartment located on the first floor.

16. The tenant, another friend as well as Mary called the Police to alert them of this burglary and/or trespass.
17. When Mary arrived at her home, 277 Grafton Street Brooklyn New York 11212, she explained to the Officers, (DeSamio, John, Jim, James and Jane Doe) that she owned the house and lived in the first-floor apartment.
18. Mary observed that her apartment door was destroyed. She was confronted by the Police Officers informing her that the “white woman” who was also at the location of 277 Grafton Street at that time claimed she lived in the apartment and was locked out.
19. Mary explained to the Officers that she lived in the apartment with her two (2) children and husband and that she rents the other apartment to the tenant that had called her and the Defendant Officers to the location because of the burglary/trespass.
20. The Defendant Officers ignored Mary and she was prevented from going into the apartment.
21. Mary further explained that she did not know the “white woman”, nor did she rent an apartment to the “white woman”.
22. Mary eventually made her way into the apartment to show the Defendant Officers proof of residency such as clothes, mail, etc.
23. The Officers refused to look at independently or take any of the items shown to them by Mary.
24. Mary then kneeled by her daughter’s bed and began to pray when she was arrested for trespassing.
25. Mary told the Defendant Officers that they could not arrest her because they had no Warrant, no Writ of Execution, or any other document to show she was committing a crime.
26. Mary further stated to the Defendant Officers that they had no authority to have her leave the apartment. At no time did the Defendant Officers investigate or question the “white woman”.
27. The “white woman” stood screaming and crying while Mary was grabbed, searched and handcuffed by two (2) Officers.
28. Mary was then transported to the local precinct where she was searched again,

fingerprinted, photographed and detained for 6 hours before receiving a Desk Appearance Ticket, (DAT).

29. During her 6-hour detention, the Mary pleaded with the Defendant Officers for a phone call because she had two minors at home unattended. Mary was ignored and refused the call.
30. Mary appeared in Court on the date posted on her DAT only to have the case dismissed.
31. The Defendant Officers' actions on May 14, 2021 were intentional including the false arrest of Mary.
32. As a result of her false detention, arrest, imprisonment, battery and assault, Mary suffers from sleeplessness, anxiety, hyper vigilance and her children have been traumatized in that they will not sleep alone and are wetting their beds when they sleep alone - all conduct never displayed prior.
33. All aforementioned conduct was committed by the City of New York, their agents, servants or employees, while acting within the scope of their employment.
34. The City of New York, their agents, servants or employees intended to confine Mary; Mary was conscious of confinement and did not consent thereto, and the confinement was not otherwise privileged, all without just right, probable cause and without grounds therefore.
35. The City, their agents, servants and employees as aforementioned committed a battery upon Mary without just cause or justification, and in an excessive manner and force, intentionally caused physical contact, causing serious injuries to Mary's mind and body.
36. Mary was aware of the threat of imminent harm and unconsented contact and actually feared it while the Defendants had the apparent ability to cause said unlawful and unconsented contact and harm and actually caused it to occur.
37. Mary was and is at all times innocent of all charges and had committed no crime.
38. Mary sustained physical and emotional injury as a result of the Defendant Officers' conduct.
39. That this action falls within one of the exceptions of CPLR 1601.

**AS AND FOR A FIRST CAUSE OF ACTION**  
**ON BEHALF OF THE PLAINTIFF AGAINST ALL NAMED DEFENDANTS**  
**FOR FALSE DETENTION/IMPRISONMENT**

40. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "39" with the same force and effect as if more fully and at length set forth herein.
41. That beginning on or about the 14<sup>th</sup> day of May 2021, at the approximate hours of 2:45 p.m. at or near the vicinity of 277 Grafton Street, Brooklyn, New York 11212 and continuing at the 73<sup>rd</sup> Pct, 1470 East New York Avenue, Brooklyn, New York, until released, the Defendants, and their agents, servants and/or employees intentionally handcuffed and imprisoned the Plaintiff, without any just cause or grounds therefor and held her against her will under full force of arms.
42. That said imprisonment was caused by the Defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds or any cause to believe that the Plaintiff was guilty of any crimes, or that the Defendants had just cause to imprison the Plaintiff.
43. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her arrest or imprisonment by the Defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.
44. That the Defendants, their agents, servants and/or employees, as set forth above, intended to confine the Plaintiff; the Plaintiff was conscious of her confinement; the Plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.
45. That by reason of the aforesaid false imprisonment and detention of the Plaintiff, she was subjected to great indignity, humiliation, pain and great distress of mind and body and the said Plaintiff has been otherwise damaged.
46. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AND AS FOR A SECOND CAUSE OF ACTION**  
**FOR FALSE ARREST AGAINST ALL NAMED DEFENDANTS**

47. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "46" with the same force and effect as if more fully and at

length set forth herein.

48. That on the 14<sup>th</sup> day of May, 2021, at approximately 2:45 p.m., the Defendants and their agents, servants and/or employees intentionally and maliciously arrested, handcuffed, detained and imprisoned Plaintiff, without any just cause or grounds therefore, and held her against her will under full force of arms until she was released from the 73<sup>rd</sup> Pct.
49. That the Plaintiff was falsely arrested, imprisoned and accused by the Defendants, their agents, servants and/or employees of having committed the crimes of “Disorderly Conduct Trespass, Resisting Arrest among other charges.
50. That said arrest was caused by the Defendants and their agents, servants, and/or employees, without any warrant or other legal process, without authority of the law and without any reasonable grounds or cause to believe that the Plaintiff was guilty of any crime.
51. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her arrest by the Defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.
52. The Defendants, their agents, servants and/or employees, as set forth above, intended to seize, handcuff and arrest the Plaintiff; the Plaintiff was conscious of her arrest and confinement; the Plaintiff did not consent to her arrest and confinement; and the arrest and confinement was not otherwise privileged.
53. That by reason of the aforesaid false arrest and false charges filed against her, the Plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body and the said Plaintiff has been otherwise damaged.
54. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION**  
**ON BEHALF OF THE PLAINTIFF AGAINST**  
**ALL NAMED DEFENDANTS FOR ASSAULT AND BATTERY:**

55. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked “1” through “54” with the same force and effect as if fully set forth herein.



56. Upon information and belief, on or about the 14<sup>th</sup> day of May, 2021, commencing at the approximate hour of 2:45 p.m. at or near the vicinity of 277 Grafton Street, Brooklyn, New York 11212, Defendants/Officers, while acting within the scope of their employment as police officers and as agents for the Defendant City, without just cause or provocation and with great force and violence, struck, slapped, forcibly grabbed, slammed, searched and arrested the Plaintiff.
57. Defendants did not explain why the Plaintiff was being arrested the entire time she was in custody.
58. The Plaintiff was searched twice and detained while handcuffed in a holding cell.
59. That the Defendants, their agents, servants and/or employees, including but not limited to the Officers, while acting as agents of the Defendant City within the scope of their employment, intentionally battered and assaulted the Plaintiff in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact to the Plaintiff and intentionally did an act which threatened to and did cause such contact to the Plaintiff. That said acts caused apprehension of such offensive contact to the Plaintiff and the Defendant Officers, in a hostile and/or offensive manner, touched and beat the Plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such batter in and about her body and limbs.
60. That the Officers used excessive and/or unreasonable force to effectuate the Plaintiff's arrest.
61. That said acts occurred within the scope of the police officers' employment with the "City"
62. That by reason of the aforesaid intentional battery and assault, the Plaintiff suffered and continues to suffer from physical and psychological injuries and was rendered sick, sore, and lame, and, among other things, suffered conscious pain and suffering, and that she was otherwise damaged.
63. That by reason of the aforesaid battery and assault, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION**  
**ON BEHALF OF THE PLAINTIFF AGAINST THE DEFENDANTS**  
**FOR MALICIOUS PROSECUTION**

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "63" with the same force and effect as if more fully and at length set forth herein.
65. The Defendant Officers filled out false police reports and issued a DAT to the Plaintiff for the purpose of prosecuting her for the charge that they knew she did not commit and/or did not exist.
66. The Defendant Officers took such actions, knowingly and with a malicious disregard for the truth, and did so with the intent to cover up the illegal arrest of the Plaintiff and the injuries that she sustained at the hands of the police.
67. The Plaintiff was at all times innocent of any crime charged.
68. That due to the malicious prosecution, the Plaintiff was caused to be in conveyance and had to retain legal representation to defend herself.
69. That by reason of the aforesaid malicious prosecution, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION**  
**ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE**  
**AGAINST THE "CITY" THE PLAINTIFF ALLEGES:**

70. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "69" with the same force and effect as if more fully and at length set forth herein.
71. That the City and/or NYPD were at all relevant times hereunder negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the Defendant Officers named herein.
72. That as a result of their negligence, the Plaintiff was battered, assaulted, falsely detained, falsely arrested, falsely imprisoned, illegally seized, illegally searched, and had her

constitutional and civil rights violated.

73. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR VIOLATION  
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER  
42 U.S.C. 1983 AGAINST THE CITY OF NEW YORK**

74. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "73" with the same force and effect as if more fully and at length set forth herein.
75. That upon information and belief, on or about approximately 14<sup>th</sup> day of May, 2021, commencing at the approximate hour of 2:45 p.m. at or near the vicinity of 277 Grafton Street, Brooklyn, New York 11212, and continuing to the 73<sup>rd</sup> Pct., 1470 East New York Avenue, Brooklyn, New York, the Defendant Officers were present as part of their regular course of business/employment with the City.
76. That the Plaintiff was lawfully present at the vicinity of 277 Grafton Street, Brooklyn, New York 11212.
77. That the Defendant Officers without probable cause or reasonable suspicion, detained, arrested and imprisoned the Plaintiff.
78. That the Plaintiff was battered, assaulted, mistreated, forcibly grabbed, slammed, struck, handcuffed, searched and imprisoned by the Defendant Officers who were acting as agents, servants and/or employees of Defendant City, and without provocation to handcuff, seize and arrest the Plaintiff.
79. That all acts committed by the Defendant Officers and other agents, servants, and/or employees and/or agents of the Defendant City were committed within the scope of their employment and under color of law, and while said Officers were acting under the custom, policy, rules and/or regulations of the City.
80. That said acts constituted an illegal seizure of the Plaintiff and deprived the Plaintiff of her rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

81. That said acts constituted cruel and unusual punishment.
82. That said acts violated the Plaintiff's rights to due process of law.
83. That the Defendant City caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, false arrests, condoning or tolerating excessive or arbitrary use of force; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding employee misconduct; failing to properly supervise, train, investigate or discipline officers; engaging in a pattern of falsely accusing individuals who were victims of excessive use of force with having committed a crime to cover up illegal police conduct; and engaging in police cover-up, any and for all of the above contributing to Plaintiff's false arrest, prosecution and injuries.
84. The City negligently trained, retained, re-trained, supervised, disciplined, monitored and/or investigated the Defendant Officers when, upon information and belief, they had knowledge of their violent propensities and prior bad acts.
85. The Defendants' actions on May 14, 2021 were performed under the color of the policies, statute, ordinances, rules and regulations of the City of New York.
86. That the Plaintiff did not commit any illegal act either before or at the time she was falsely arrested and imprisoned, battered, assaulted, and deprived of her constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.
87. That by reason of the aforesaid, the Plaintiff was injured in mind and body, and she was damaged.
88. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys' fees, and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SEVENTH THROUGH ELEVENTH CAUSE OF ACTION**  
**ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C.**  
**SECTION 1983, BY “DESAMIO, JOHN, JIM, JAMES AND JANE DOE” EACH IN**  
**HIS/HER INDIVIDUAL CAPACITY AND AS AGENTS OF THE CITY OF NEW YORK**

89. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "88" with the same force and effect as if more fully and at length set forth herein.
90. That at all times hereinafter mentioned, the Defendant Officers were employed by the Defendant City and/or the NYPD and each was acting under the color of his/her official capacity and their acts and actions were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
91. That at all times hereinafter mentioned, the Defendant Officers acted pursuant to orders and directives from the Defendant City.
92. That during all times hereinafter mentioned, the Defendant Officers acted under the color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the City of New York and/or the New York City Police Department and that they were acting under the color and pretense of law and engaged in the illegal conduct set forth in this complaint to the injury of the Plaintiff, and deprived her of the rights, privileges and immunities secured to her by the Fourth, Eighth and Fourteenth Amendments of the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and/or Section 1986.
93. That the unlawful and illegal conduct of the Defendant Officers deprived the Plaintiff of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:
- a) The right of the Plaintiff to be secure in her person and effects against unreasonable search and seizure, and the right not to be subjected to excessive force, under the Fourth and Fourteenth Amendments to the Constitution of the United States;
  - b) The right of the Plaintiff to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States;
  - c) The right to be free of cruel and unusual punishment;
  - d) The right not to be discriminated against based on race, age or creed;

- e) The right to prompt and necessary medical attention; and
  - f) The right to due process of law.
94. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure of Plaintiff's person, her false arrest and false imprisonment, battery and assault, the Defendant Officers' conspiracy to violate the Plaintiff's due process of law and the malicious prosecution of the Plaintiff, the Defendant Officers violated the Plaintiff's rights and privileges as provided to her in the Constitution of the United States of America and in the Constitution of the State of New York, and laws thereto, the Defendant Officers violated 42 U.S.C. §1983.
95. That as a direct proximate result of the Defendants' actions, the Plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
96. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and she has expended and incurred divers sums of money in an effort to cure herself of said injuries, to extricate herself from the indignities and humiliation fostered upon her by the actions of the Defendant Officers individually and collectively.
97. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages plus punitive damages, costs, attorneys' fees and expert fees as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A TWELFTH THROUGH SIXTEENTH CAUSES OF ACTION:**  
**FOR VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS**  
**UNDER 42 U.S.C. 1983, 1985 AND 1986 AGAINST THE CITY OF NEW YORK**

98. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "97" with the same force and effect as if more fully and at length set forth herein.
99. That on or about the 14<sup>th</sup> day of May, 2021, at approximately 2:45 p.m. at or near location, the Defendant Officers were present thereat as part of their regular and official employment as Police Officers for the Defendant City.

100. The Plaintiff was lawfully and properly thereat when the Defendant Officers, while acting as agents, servants and/or employees of the Defendant City, forcibly grabbed, struck battered, assaulted, slammed, handcuffed, searched, seized, arrested and imprisoned the Plaintiff absent just cause, provocation or reason. The Plaintiff had not engaged in any criminal conduct or suspicious activity.
101. The Plaintiff was retaliated against by the Officers who illegally, seized, searched, battered, assaulted, arrested and imprisoned her because she asked the Defendant Officers to make an arrest of a trespasser or leave her property.
102. Upon information and belief, the Officers were required to fill out a stop, question and frisk report.
103. Upon information and belief, they did not fill out and submit a stop, question and frisk report or stop question and frisk report worksheet as required.
104. The Defendants failed to activate their respective body cameras to record the police encounter with the Plaintiff.
105. Upon information and belief, the Officers fabricated a reason for arresting the Plaintiff.
106. Further, the other named Officers who were present at the time of the Plaintiff's arrest failed to report the false arrest.
107. Likewise, when the Defendant Officers were abusive to the Plaintiff, no officer intervened or reported the misconduct as required by the New York City Patrol Guidelines.
108. Upon information and belief, to date no disciplinary action has been taken against the offending Officers for engaging in said conduct or for failing to intervene, stop it or report it or have their body cameras activated at the time of the incident concerning the Plaintiff.
109. That in order to cover up their misconduct, the Officers individually and/or collectively, conspired to file false police reports, give false statements and/or sign a false Criminal Court Complaint for the purpose of falsely imprisoning, falsely detaining and/or maliciously prosecuting the Plaintiff.
110. That said acts constituted an illegal seizure of the Plaintiff and deprived the Plaintiff of her rights and liberties as set forth in the 4<sup>th</sup> and 14<sup>th</sup> Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

111. That said acts constituted acts of cruel and unusual punishment and deprived the Plaintiff of her rights and liberties as set forth in the 8th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
112. That said acts constituted acts that violated the Plaintiff's freedom of speech as protected under the 1<sup>st</sup> and 14<sup>th</sup> Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
113. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements, and such acts deprived Plaintiff of her rights and liberties as set forth in the 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
114. That Plaintiff, as an African American female, was deprived of her right to equal protection under the law and was targeted and had her rights violated based on her race, a violation of the Equal Protection Clause under the 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
115. That the Officers conspired by and through their conduct including, but not limited to, their overt acts, their failure to intervene, stop and report, threatening witnesses, and the falsification of reports and evidence to deprive or hinder the Plaintiff's right to justice, and to injure her.
116. Upon information and belief, Police Officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.
117. The Officers herein conspired to deprive the Plaintiff of equal protection under the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.
118. That the Plaintiff's false detention, arrest, imprisonment, battery, assault and violation of her constitutional rights resulted from the Defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and/or police practices including excessive use of force; illegal use of police equipment; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train,



investigate or discipline Officers; engaging in illegal stop, question and frisks, permitting or condoning illegal stop, search and seizure of property and persons, any and/or all of the above contributing to Plaintiff's false arrest and prosecution, and injuries.

119. The Defendant Officers' actions on May 14, 2021 were performed under the color of law and the policies, statutes, ordinances, rules, practices and regulations of the City of New York, and they were performed to the detriment of the Plaintiff.
120. That Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned, battered, assaulted, and deprived of her constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983, 1985 and 1986 and the Constitution of the State of New York.
121. That by reason of the aforesaid, the Plaintiff was deprived of her liberty, lost income, battered, injured, and she was damaged.
122. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys' fees, and expert fees as provided by 42 U.S.C. Sections 1983, 1985 1986 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SEVENTEENTH THROUGH TWENTY-FIRST CAUSES OF ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1985, BY POLICE OFFICERS "DESAMIO, JOHN, JIM, JAMES AND JANE DOE" IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:**

123. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "122" with the same force and effect as if more fully and at length set forth herein.
124. That at all times hereinafter mentioned, John, Jim, James and Jane were employed by the Defendant City and/or the NYPD and were acting under the color of their official capacity and their acts (both individually and collectively) were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
125. That at all times hereinafter mentioned, Defendant Desamio was employed by the Defendant City and/or the NYPD and was acting under the color of his official capacity

and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

126. That at all times hereinafter mentioned, the Defendant Officers, individually and collectively, were acting pursuant to orders and directives from Defendant City.
127. That during all times hereinafter mentioned, the Defendant Officers, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and conspired to engage in the illegal conduct set forth this complaint to the injury of the Plaintiff, and deprived her of the rights, privileges and immunities secured to her by the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1985.
128. That the “Defendant Officers conspired to deprive Plaintiff of witnesses, evidence, a fair trial, exculpatory information and material, to intimidate and threaten, to abuse, to degrade, to batter and to due process of law and equal protection of the law.
129. That by reason of the aforesaid violations such as seizure and search of Plaintiff’s person, her false detention, battery assault, imprisonment and falsifying evidence, and discrimination, the Defendant Officers violated the Plaintiff’s rights and privileges as provided to her in the Constitution of the United States of America and provided to her in the Constitution of the State of New York, and laws thereto, the Officers and violated 42 U.S.C. §1985.
130. That as a direct proximate result of “Defendants/Officers” actions, the Plaintiff was detained, physically and emotionally injured, and was subjected to great indignities and humiliation, pain and distress of mind and body, and was humiliated and defamed thereby.
131. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
132. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys’ fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A TWENTY-SECOND THROUGH TWENTY-SIXTH CAUSES OF ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1986, BY POLICE OFFICERS “DESAMIO, JOHN, JIM, JAMES AND JANE DOE” IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:**

133. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "132" with the same force and effect as if more fully and at length set forth herein.
134. That at all times hereinafter mentioned, John, Jim, James and Jane were employed by the Defendant City and/or the NYPD and were acting under the color of their official capacity and their acts (both individually and collectively) were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
135. That at all times hereinafter mentioned, Defendant Desamio was employed by the Defendant City and/or the NYPD and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
136. That at all times hereinafter mentioned, the Defendant Officers, individually and collectively, were acting pursuant to orders and directives from Defendant City.
137. That during all times hereinafter mentioned, the Defendant Officers, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, individually and/or collectively engaged in, or conspired to engage in conduct that was illegal, and though she/he/they had the ability or power to prevent or aid in the preventing of the commission of the same, the Officers neglected or refused to do so.
138. That the Defendant Officers, each of them, could have aided or prevented the seizure and search of Plaintiff's person, the Plaintiff's false detention, the battery, the assault, the imprisonment, the falsifying of evidence, and discrimination. The Defendant Officers refused or neglected to do so, and thereby violated the Plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, the Defendant Officers violated 42 U.S.C. §1986.

139. That as a direct proximate result of the Defendant Officers' actions the Plaintiff was imprisoned, physically and emotionally injured, and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

140. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

141. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys' fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper.

**WHEREFORE**, the Plaintiff demands judgment against the Defendants on the first through twenty-sixth causes of actions in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages and such other relief as to the court seems just and proper on the first through twenty-sixth causes of action, and such further relief as to the court seems just and proper.

DATED: New York, New York  
May 10, 2022

/s/ ROYCE RUSSELL, ESQ.  
Royce Russell, Esq.  
R-SQUARE, ESQ. PLLC  
112 West 34<sup>th</sup> Street 18Fl  
New York, NY 10120  
(718) 785-8890

**ATTORNEY'S VERIFICATION**

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons with Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York  
May 10, 2022

/s/ ROYCE RUSSELL, ESQ.  
By: Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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MARY POWER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SGT. DESAMIO, SHIELD # 696,  
POLICE OFFICERS JOHN DOE, JIM DOE, JAMES DOE AND JANE DOE (ALL FICTITIOUS NAMES  
BECAUSE THEIR IDENTITIES ARE CURRENTLY UNKNOWN) ALL FROM THE 73RD PCT., BEING SUED  
IN THE CAPACITY AS POLICE OFFICERS AND INDIVIDUALLY,

Defendants.

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**SUMMONS WITH VERIFIED COMPLAINT**

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R-SQUARE, ESQ. PLLC.  
Attorney for Plaintiff  
112 West 34<sup>TH</sup> Street Fl. 18  
New York, NY 10120  
(718) 785-8890

To: The City of New York  
c/o Office of the Corporation Counsel  
100 Church Street  
New York, NY 10007

The New York City Police Department  
1 Police Plaza  
New York, New York 10038

Police Officer Sgt. Desamio  
#696  
c/o 73rd Precinct  
1470 East New York Avenue  
Brooklyn, NY 11212

Police Officers John, Jim, James, and Jane Doe  
(A Fictitious Names-their Identity are Unknown)  
c/o 73rd Precinct  
1470 East New York Avenue  
Brooklyn, NY 11212

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Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

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Dated: May 10, 2022

Signature

/s/ ROYCE RUSSELL  
Royce Russell, Esq.

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PLEASE TAKE NOTICE

☐ NOTICE OF ENTRY  
that the within is a (certified) true copy of a                      duly entered in the office of the  
clerk of the within named court on

☐ NOTICE OF SETTLEMENT  
that a                      of which the within is a true copy  
will be presented for settlement to the HON.    one of the judges of the, on